

Civ. Pro.—Discovery, § 8.9.

Code of Civil Procedure section 2024.050 provides: “[o]n motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.”

As noted above, Plaintiff’s *ex parte* application to advance the hearing date on the Motion to Compel was denied by the Court. See Order entered October 29, 2025. No further order was otherwise granted by the Court to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date.

Even if the Plaintiff had properly sought to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date to pursuant to Section 2024.050, the Court, in the exercise of its discretion would deny it.

The Court has already determined that Plaintiff was dilatory in seeking to bring the matter before the Court, including in light of the overall procedural posture of the case. See Order entered October 29, 2025, p. 2.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is DENIED.
2. The Court shall issue the order after hearing.

Courtroom Clerk's session

21. 10:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
JURY TRIAL 7 DAYS
FILED BY:
TENTATIVE RULING:

Parties to Appear.

22. 1:30 PM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**
FILED BY: LEONE, MISTY
TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Compel Court Receiver Dan Harkins’ Disclosure of The Receivership Estate’s Accounts and Records on September 3, 2025 (the

“Motion to Compel”). The Motion to Compel was initially set for hearing on December 15, 2025. The motion was later continued to January 12, 2026 and, ultimately, reset for hearing on February 9, 2026, as discussed further below. The motion is opposed.

Background

By its order issued December 19, 2023, this Court appointed Dan Harkins (the “Receiver”) as receiver over the subject business, CMD Saloon, LLC (the “Business”) for the purpose of, among other things, overseeing and managing the day-to-day operations of the Business. See Order Appoint Receiver entered December 19, 2023.

By this motion, Ms. Leone seeks to compel “disclosure of the receivership estate’s accounts and records” by the Receiver.

The motion is support by the Declaration of Dean Cafiero filed September 3, 2025 (the “Cafiero Declaration”) and the Declaration of Defendant Leone filed that same date (the “Leone Declaration”).

Analysis

Meet and Confer

At an Issue Conference conducted in this matter on January 8, 2026, the Motion to Compel was addressed in open court and continued to February 9, 2026. The Court understood that the parties had agreed to an informal process for the Receiver to provide access to the Receiver’s files for Ms. Leone’s inspection. The Court ordered the parties to meet and confer to try to resolve the matter.

- 7. Discovery Motions.** The parties are ordered to meet and confer regarding all unresolved discovery related matters. Ms. Leone’s Motion to Compel Court Receiver Dan Harkins’ Disclosure of the Receivership Estate’s Accounts and Records filed September 3, 2025 and previously set for hearing on January 12, 2026 is continued for hearing to **February 9, 2026, 1:30 pm**, in Department 34.

See Order entered January 20, 2026, ¶17.

No party has filed any further declaration or other paper showing that this meet and confer took place or indicating that any dispute remains after any informal efforts to provide access to the Receiver’s files.

For this reason alone, the Court would deny the motion.

Compelling Access to Receiver’s Accounts and Records

Even if the meet and confer were done and a dispute remains, the Court would deny the motion seeking to compel access to the Receiver’s accounts and records.

Ms. Leone’s request appears to be based on a written demand on or about April 16, 2025 sent in her capacity as the “manager of the LLC” to the Business’ counsel and the Receiver. See Leone Declaration, p. 14 and **Exhibit A** (the “Production Demand”).

Production Demand recites, among other things that it is made pursuant to Corporation Code sections 17704.10 and 17701.13. *Id.* at **Exhibit A**.

Corporation Code section 17704.10, subdivision (a), provides:

(a) Upon the request of a member or transferee, for purposes reasonably related to the interest of that person as a member or a transferee, a manager or, if the limited liability company is member-managed, a member in possession of the requested information, shall promptly deliver, in writing, to the member or transferee, at the expense of the limited liability company, a copy of the information required to be maintained by paragraphs (1), (2), and (4) of subdivision (d) of Section 17701.13, and any written operating agreement of the limited liability company.

See Corp. Code § 17704.10.

The referenced provisions of Corporation Code section 17701.13 enumerate certain limited categories of information. See Corp. Code § 17701.13(d)(1)(2) and (4) [(“(1) A current list of the full name and last known business or residence address of each member and of each transferee set forth in alphabetical order, together with the contribution and the share in profits and losses of each member and transferee. [¶] (2) If the limited liability company is a manager-managed limited liability company, a current list of the full name and business or residence address of each manager. [¶] (4) Copies of the limited liability company’s federal, state, and local income tax or information returns and reports, if any, for the six most recent fiscal years.”)].

Those categories are not coextensive with the scope of Ms. Leone’s Production Demand. The categories of documents sought are extraordinarily broad and sweeping. See Production Demand, pp. 1-4.

Even if the scope of the requested production were reasonable, Ms. Leone has not shown that an order compelling production of the records sought, akin to an order compelling further discovery compliance in pending litigation, is somehow an appropriate or available remedy.

Ms. Leone only cites to Code of Civil Procedure section 128 which describes certain broad powers vested in the Court. See Code Civ. Proc. § 128.

In any event, the Court has no doubt that it has the power and authority to make orders in relation to the receivership, including as relates to the disclosure of books and records relating to the work of the Receiver. *Lesser & Son v. Seymour* (1950) 35 Cal. 2d 494, 499 (“The receiver is a mere agent and the property in his hands is really under the control and continuous supervision of the court.”).

Nonetheless, the Court declines, in the exercise of its discretion, to issue any further order compelling the Receiver to comply with Production Demand.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel is DENIED.
2. The Court shall enter the order after hearing.

Law & Motion
Add On

23. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

Law & Motion
Add On 2

24. 9:00 AM CASE NUMBER: N25-2345
CASE NAME: CLAIM OF: MAGGIE ROE
*HEARING ON MINOR'S COMPROMISE
FILED BY: Petitioner Diane Roe
TENTATIVE RULING:

Petitioner Diane Roe ("Plaintiff") filed a Petition for Approval of Compromise on or about November 26, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on April 20, 2026 and subsequently advance by order of the Court to February 9, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge